

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter Of

**CERTAIN SECONDARY CYLINDRICAL
BATTERIES, COMPONENTS THEREOF,
AND PRODUCTS CONTAINING THE
SAME**

Investigation No. 337-TA-_____

(Docket No. 3926)

**SUBMISSION BY PROPOSED RESPONDENT ROBERT BOSCH GMBH
REGARDING INSTITUTION**

Proposed Respondent Robert Bosch GmbH (“Bosch GmbH”) provides this submission in response to the Commission’s Notice of Receipt of Complaint and Solicitation of Comments Relating to the Public Interest. *See* 91 Fed. Reg. 46942 (July 27, 2026). While the complaint alleges that proposed respondent Robert Bosch Tool Corporation (“Bosch Tool”) is a U.S. company that imports tool batteries into the United States and sells them after importation, German company Bosch GmbH does not. Complainants LG Energy Solution Ltd. and LG Energy Solution Arizona, Inc. (collectively, “Complainants”) do not allege that Bosch GmbH imports, sells for importation, or sells after importation accused articles. Thus, Bosch GmbH respectfully requests that, if the Commission institutes an investigation, Bosch GmbH not be named as a respondent.

I. Complainants Must Allege A Good Faith Basis To Believe Bosch GmbH Imports, Sells For Importation, Or Sells After Importation Accused Articles.

Section 337 is clear. With respect to patent claims, the “unlawful activities” investigated by the Commission are “[t]he importation into the United States, the sale for importation, or the sale within the United States after importation by the owner, importer, or consignee, of articles that... infringe a valid and enforceable United States patent....” 19 U.S.C. § 1337(a)(1)(B). “Accordingly, a necessary element of a finding that a respondent violated section 337 requires proof that the respondent actually imported, sold for importation, or sold after importation the articles at issue.” *Certain LED Lighting Devices, LED Power Supplies, and Components Thereof*, 337-TA-1081, Initial Determination at 23 (Dec. 19, 2018) (Dkt. ID 666056) (“*LED Lighting*”). A party that does not import, sell for importation, or sell after importation an accused article cannot, by definition, be found in violation of Section 337.

Complainants have the burden to allege in their complaint “the facts constituting the alleged unfair methods of competition and unfair acts” and “specific instances of alleged unlawful importations or sales....” 19 C.F.R. §§ 210.12(a)(2) and (3). Complainants have not alleged that

Bosch GmbH imports, sells for importation, or sells after importation any accused article. Thus, Bosch GmbH should not be named as a respondent in any investigation.

II. Complainants Do Not Allege That Bosch GmbH Imports, Sells For Importation, Or Sells After Importation Accused Articles.

Specifically, in § VII of their complaint, Complainants identify the alleged “SPECIFIC INSTANCES OF UNFAIR IMPORTATION AND SALE.” Complaint, ¶¶ 109-116. None of these paragraphs allege that *Bosch GmbH* (as opposed to Bosch Tool or the other proposed respondents) imports, sells for importation, or sells after importation any accused article. *Id.*

Rather than set forth any allegation against Bosch GmbH, the complaint identifies 10 separate entities collectively as “Respondents.” Complaint, ¶ 3. Then, in ¶ 109, Complainants allege that at least one of these “Respondents” imports, sells for importation, and/or sells after importation the accused articles. Even if this is true – that one or more of the proposed respondents imports, sells for importation, or sells after importation accused articles – that is not an allegation that proposed respondent Bosch GmbH does so.

The only allegations specific to “Bosch” (collectively, not Bosch GmbH specifically) are in ¶¶ 112, 113, and 116.¹ None of those paragraphs provide a basis to assume – or even allege – that Bosch GmbH imports, sells for importation, or sells after importation in the United States.

In ¶ 112, Complainants allege that “Bosch” products contain the accused 40PL EVE batteries. Even if true, that is not an allegation that Bosch GmbH imports, sells for importation, or sells after importation those products.

¹ Complainants define Bosch Tool and Bosch GmbH collectively as “Bosch.” Complaint, ¶ 3. Generic allegations that “Bosch” commits unfair acts are not a specific allegation that German company Bosch GmbH (rather than U.S. company Bosch Tool) imports, sells for importation, or sells after importation in the United States.

In ¶ 113, Complainants allege that “the EVE batteries contained within the Bosch products are made in China.” Again, even if true, that is not an allegation that Bosch GmbH imports, sells for importation, or sells after importation those products.

Paragraphs 114-115 do not relate to the proposed Bosch respondents. In ¶ 116, Complainants allege that “[t]he order and shipping/pickup paperwork for the purchased Bosch Products... indicates the products were shipped to or picked up at an address within the United States.” But while the complaint alleges that proposed respondent Bosch Tool imports the accused Bosch Products, this is not an allegation that proposed respondent Bosch GmbH – a completely separate company – also imports, sells for importation, or sells after importation those products.

Complainants represent that Ex. 22 to their complaint is their “Importation Evidence.” Complaint at iv. That Exhibit does not allege – let alone establish – that Bosch GmbH imports, sells for importation, or sells after importation any accused article. To the contrary, at most Exhibit 22 alleges that proposed respondent U.S. company Bosch Tool (not German company Bosch GmbH) imports the accused articles. Specifically, at page 15 Complainants provide a picture of a Bosch 18V “High Power Li-Ion Battery” that was allegedly imported into the United States. But, while Complainants crop the image on page 16, it is clear that the accused article was from proposed respondent Bosch Tool Corporation located in Mount Prospect, IL 60056 (*see* Complaint ¶ 27), not Bosch GmbH:



Ex. 22 at 15 and 16 (red box added).

III. If The Commission Institutes The Investigation, There Is No Basis To Name Bosch GmbH As A Respondent.

As the complaint notes, Bosch GmbH is a German company with its principal place of business located at Robert-Bosch-Platz 170839 Gerlingen-Schillerhohe, Germany. Complaint, ¶ 26. Bosch Tool is a United States company and Complainants have adequately alleged that Bosch Tool imports and sells after importation accused articles. Thus, Bosch Tool is an appropriate respondent and, if Complainants prove a violation, they could be entitled to relief against Bosch Tool. But, there is no basis to include Bosch GmbH as a respondent based on what is alleged in the complaint.

Indeed, on similar facts the Commission previously found that Bosch GmbH “does not meet the requirements of section 1337(a)(1)(B).” *In the Matter of Certain Electrical Connectors*, 337-TA-1043, Initial Determination (April 12, 2019) (Doc. ID 674376) adopted by Commission Sept. 5, 2019 (Doc. ID 687282) at 47. In that investigation, the Commission adopted the ALJ’s determination that there was no evidence “that Robert Bosch GmbH is either the ‘owner, importer, or consignee’ of the Accused Product” and, thus the evidence “falls far short of demonstrating that Robert Bosch GmbH satisfies section 1337(a)(1)(B).”² *Id.* This is even more true here, where Complainants have not even alleged – let alone, provided a good faith basis to believe – that Bosch GmbH imports, sells for importation, or sells after importation accused articles.

Dated: August 4, 2026

Respectfully submitted,

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² Bosch GmbH is the corporate “grandparent” of Bosch Tool, but they are separate companies. That corporate relationship is not sufficient to find a violation by Bosch GmbH even if Complainants prove Bosch Tool imports accused products. *See, e.g. Certain Semiconductor Integrated Circuits Using Tungsten Metallization and Products Containing Same*, 337-TA-648, Initial Determination at 15-22 (Sept. 21, 2009) (Dkt ID 41836) (parent corporation Spansion Inc. was found not liable for a violation of section 337 when its subsidiaries sold and imported the accused products); *see also LED Lighting*, Initial Determination at 23-28 (Dec. 19, 2018) (Dkt. ID 666056) (no violation by parent company that did not, itself, import, sell for importation, or sell after importation).

CERTIFICATE OF SERVICE

I hereby certify that the foregoing was served on August 4, 2026, upon the following parties:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, D.C. 20436	☐ Via First Class Mail ☐ Via Overnight Courier ☐ Via Hand Delivery ☒ Via EDIS Electronic Filing
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/s/ Karen Johnson
Karen Johnson